

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3389

By: Clinton

AS INTRODUCED

An Act relating to landlord and tenant; providing that a landlord may require either a pet deposit or a pet fee for tenants that own a pet; prohibiting pet rent; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 62 of Title 41, unless there is created a duplication in numbering, reads as follows:

A. A landlord may charge a tenant who has a pet the following:

1. A pet deposit: Which is a deposit that covers actual damages caused by an animal. The deposit shall be:

a. refundable;

b. a one-time payment;

c. damage-based, meaning if the damages does not exceed the deposit amount the unused portion of the deposit shall be refunded to the tenant; and

d. held in escrow.

1 2. Pet Fee: A pet fee shall be:

2 a. nonrefundable:

3 b. a one-time payment charged solely because a pet will
4 live on the leased premises;

5 c. not tied to actual damages; and

6 d. not be charged in addition to pet deposit.

7 B. A landlord may not charge pet rent. Pet rent is a recurring
8 payment for having a pet on the leased premises.

9 SECTION 2. This act shall become effective November 1, 2026.

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